

1. Comparison of Terms of Service: Facebook vs. DuckDuckGo

When comparing the terms of service of both companies, the most striking difference lies in their transparency and the complexity of their texts. Facebook includes a whole bunch of privacy-related conditions that are often hidden in difficult, extensive legal language. In stark contrast, DuckDuckGo provides a very clear statement right at the top of their terms where it explicitly states that no user data is collected.

While DuckDuckGo focuses on data minimization, Facebook's terms are designed to maximize data harvesting. Two specific examples of how Facebook uses your personal data include:

1. **Personalization and Advertising:** Facebook states in its terms that it uses personal data to personalize features and content, explicitly tracking user behavior to show targeted advertisements and make suggestions for the user.
2. **Analytics for Third Parties:** Facebook explicitly outlines that it uses personal data (such as location, device information, and interaction data) to provide measurement, analytics, and other business services to help advertisers and partners understand the performance of their ads and services.

2. Linking Conditions to the UN Universal Declaration of Human Rights (UDHR)

The terms of both companies can be directly linked to five specific articles/passages in the UN Declaration of Human Rights:

1. **Preamble under (whereas 2):** *"Whereas disregard and contempt for human rights have resulted in barbarous acts..."*
 - o *Link:* DuckDuckGo respects the inherent dignity of the user by refusing to commodify their data. Conversely, Facebook's practice of hiding complex privacy conditions in difficult legal language to harvest data arguably reflects a disregard for a user's fundamental right to digital dignity and informed consent.
2. **Article 3 (Right to life, liberty and security of person):**
 - o *Link:* By explicitly stating they do not store IP addresses or search histories, DuckDuckGo protects the digital "security of person" from breaches and surveillance. Facebook's continuous tracking of location and device information creates permanent digital footprints that can jeopardize this security.
3. **Article 4 (No one shall be held in slavery or servitude):**
 - o *Link:* While physical servitude is not at play, Facebook's terms create a dynamic of "digital servitude." Users are forced to surrender their behavioral data continuously as the cost of participating in modern social infrastructure, generating massive corporate profit without equitable compensation to the data subject.
4. **Article 12 (Right to Privacy):**
 - o *Link:* Facebook's terms, which legally bind the user into allowing extensive tracking across devices and third-party websites, represent a systematic

interference with the user's privacy. DuckDuckGo's policy explicitly prevents this arbitrary interference by simply not collecting the data in the first place.

5. **Article 19 (Freedom of expression and information):**

- *Link:* Facebook uses harvested personal data to algorithmically curate and filter what users see, creating "filter bubbles" that interfere with the right to objectively "seek and receive information." DuckDuckGo's unprofiled search engine actively upholds this article by providing unbiased information regardless of the user's background.

3. Essay: Congruency of Corporate Conditions with the UN Declaration of Human Rights

Are Corporate Terms of Service Compatible with Human Rights?

In the modern digital era, evaluating corporate terms of service against the UN Universal Declaration of Human Rights (UDHR) reveals profound differences in how companies view their users. By applying the articles discussed previously, it becomes evident that DuckDuckGo's terms are congruent with the UDHR, whereas Facebook's terms are deeply incongruent.

DuckDuckGo: Congruent with the UDHR DuckDuckGo's terms of service are fundamentally congruent with the UDHR because they are built on the premise of absolute data protection. Rather than hiding behind legal jargon, there is a clear statement at the top of the DuckDuckGo terms where it states: *"We don't collect or share personal information."* This specific passage is the ultimate technical realization of **Article 12**, completely eliminating any arbitrary interference with a user's privacy. By refusing to store search histories, DuckDuckGo also ensures the digital "security of person" under **Article 3**, as they hold no centralized data that can be breached or exploited. Furthermore, because they do not track users to create behavioral profiles, they do not manipulate search results. This directly upholds **Article 19**, empowering individuals to "seek, receive and impart information" without algorithmic interference or bias. By prioritizing transparency, DuckDuckGo aligns seamlessly with the human dignity emphasized in the **Preamble (whereas 2)**.

Facebook: Incongruent with the UDHR Conversely, Facebook's terms of service are incongruent with the UDHR. To obscure the magnitude of their surveillance, Facebook embeds a whole bunch of privacy-related conditions hidden in difficult legal language. A specific passage in their terms states that they collect information about *"the people, Pages, accounts, hashtags and groups you are connected to and how you interact with them."* This continuous, pervasive surveillance fundamentally violates the spirit of **Article 12** (Right to Privacy).

Moreover, Facebook explicitly states they use this data to *"provide measurement, analytics, and other business services."* This practice of treating human behavior merely as raw material for targeted advertising borders on digital servitude, straining the principles of **Article 4**. The massive aggregation of this personal data inherently weakens the "security of person" (**Article 3**), as users are constantly exposed to profiling and potential data breaches. Finally, by using this harvested data to algorithmically dictate what content appears on a user's feed, Facebook

artificially limits the user's ability to objectively seek and receive information, fundamentally conflicting with **Article 19**.

Conclusion In conclusion, DuckDuckGo is congruent with the UDHR because its brief, clear terms actively defend human rights, particularly Articles 3, 12, and 19. Facebook is incongruent because its complex, legally dense terms are specifically engineered to circumvent these fundamental rights in favor of aggressive data monetization.